

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1061

By: Reinhardt of the Senate

and

Moore of the House

6
7
8
9
10 An Act relating to the Oklahoma Secure and Fair
11 Enforcement for Mortgage Licensing Act; amending 59
12 O.S. 2021, Section 2095.6, as amended by Section 4,
13 Chapter 218, O.S.L. 2024 (59 O.S. Supp. 2025, Section
14 2095.6), which relates to license and registration;
15 defining term; establishing certain license renewal
16 fee; updating statutory references; updating
17 statutory language; and providing an effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 59 O.S. 2021, Section 2095.6, as
20 amended by Section 4, Chapter 218, O.S.L. 2024 (59 O.S. Supp. 2025,
21 Section 2095.6), is amended to read as follows:

22 Section 2095.6. A. As used in this section, "originated" means
23 loans closed in the name of the mortgage broker or mortgage lender,
24 and shall not include brokered loans.

1 B. Applicants for a license shall apply on a form as prescribed
2 by the Administrator of Consumer Credit.

3 ~~B.~~ C. In order to fulfill the purposes of the Oklahoma Secure
4 and Fair Enforcement for Mortgage Licensing Act, the Administrator
5 is authorized to establish relationships or contracts with the
6 Nationwide Multistate Licensing System and Registry or other
7 entities designated by the Nationwide Multistate Licensing System
8 and Registry to collect and maintain records and process transaction
9 fees or other fees related to licensees or other entities or
10 individuals subject to the Oklahoma Secure and Fair Enforcement for
11 Mortgage Licensing Act.

12 ~~C.~~ D. In connection with an application for licensing as a
13 mortgage loan originator, the applicant shall, at a minimum, furnish
14 to the Nationwide Multistate Licensing System and Registry
15 information concerning the applicant's identity including:

16 1. Fingerprints for submission to the Federal Bureau of
17 Investigation and any governmental agency or entity authorized to
18 receive such information for a state, national and international
19 criminal history background check; and

20 2. Personal history and experience in a form prescribed by the
21 Nationwide Multistate Licensing System and Registry and the
22 Administrator to obtain:
23
24

1 a. an independent credit report obtained from a consumer
2 reporting agency defined in 15 U.S.C., Section
3 1681a(p), and

4 b. information related to any administrative, civil or
5 criminal findings by any governmental jurisdiction.

6 ~~D.~~ E. In connection with an application for licensing as a
7 mortgage broker or mortgage lender, the applicant shall, at a
8 minimum, furnish to the Nationwide Multistate Licensing System and
9 Registry information concerning each owner, officer, director or
10 partner, as applicable including:

11 1. Fingerprints for submission to the Federal Bureau of
12 Investigation and any governmental agency or entity authorized to
13 receive such information for a state, national and international
14 criminal history background check; and

15 2. Personal history and experience in a form prescribed by the
16 Nationwide Multistate Licensing System and Registry and the
17 Administrator to obtain:

18 a. an independent credit report obtained from a consumer
19 reporting agency described in 15 U.S.C., Section
20 1681a(p), and

21 b. information related to any administrative, civil or
22 criminal findings by any governmental jurisdiction.

23 ~~E.~~ F. For purposes of this section and in order to reduce
24 points of contact which the Federal Bureau of Investigation may have

1 to maintain for purposes of paragraph 1 and subparagraph b of
2 paragraph 2 of subsection ~~D~~ E of this section, the Administrator may
3 use the Nationwide Multistate Licensing System and Registry as a
4 channeling agent for requesting information from and distributing
5 information to the United States Department of Justice or any
6 governmental agency.

7 ~~F.~~ G. For the purposes of this section and in order to reduce
8 the points of contact which the Administrator may have to maintain
9 for purposes of subparagraphs a and b of paragraph 2 of subsection ~~D~~
10 E of this section, the Administrator may use the Nationwide
11 Multistate Licensing System and Registry as a channeling agent for
12 requesting and distributing information to and from any source so
13 directed by the Administrator.

14 ~~G.~~ H. A license issued under the Oklahoma Secure and Fair
15 Enforcement for Mortgage Licensing Act shall be valid for a period
16 of one (1) year, unless otherwise revoked or suspended by the
17 Administrator as provided in the Oklahoma Secure and Fair
18 Enforcement for Mortgage Licensing Act.

19 ~~H.~~ I. The Administrator, on determining that the applicant is
20 qualified and upon payment of the fees by the applicant, shall issue
21 a license to the applicant. An applicant who has been denied a
22 license may not reapply for the license for sixty (60) days from the
23 date of the previous application. A new license issued on or after
24

1 November 1 shall be effective through December 31 of the following
2 calendar year.

3 ~~I.~~ J. A licensee shall pay the renewal fee on or before
4 December 1. If the license is not renewed by December 1, the
5 licensee shall pay a late renewal fee as prescribed by rule of the
6 Commission on Consumer Credit. Licenses not renewed by December 31
7 shall expire and the licensee shall not act as a mortgage broker,
8 mortgage lender or mortgage loan originator until a new license is
9 issued pursuant to the Oklahoma Secure and Fair Enforcement for
10 Mortgage Licensing Act. A license shall not be granted to the
11 holder of an expired license except as provided in the Oklahoma
12 Secure and Fair Enforcement for Mortgage Licensing Act for the
13 issuance of an original license.

14 ~~J.~~ K. A licensee shall prominently display the mortgage broker,
15 mortgage lender or mortgage loan originator license in the principal
16 place of business of the mortgage broker, mortgage lender or
17 mortgage loan originator and any branch office of the mortgage
18 broker or mortgage lender.

19 ~~K.~~ L. 1. An applicant for a mortgage broker or mortgage lender
20 license shall pay a fee of One Thousand Two Hundred Dollars
21 (\$1,200.00). This fee shall cover the application fee and
22 examination fee for all registered locations, including any changes
23 of address.

24

1 2. Mortgage broker or mortgage lender licenses may be renewed
2 by submitting an annual assessment fee. The annual assessment fee
3 shall:

4 a. be based on the dollar volume of loans originated for
5 residential real property located in Oklahoma during
6 the twelve-month period ending June 30,

7 b. be based on the dollar volume of loans serviced for
8 residential real property located in Oklahoma as
9 reported on the Q2 mortgage call report for the period
10 ending on June 30,

11 c. be determined by applying a factor of eight-
12 thousandths of a percent (0.008%) of the dollar volume
13 of loans originated and the dollar volume of loans
14 serviced in Oklahoma, and

15 d. cover:

16 (1) the renewal fee for the principal office and any
17 branches, and

18 (2) any examination-related costs incurred by the
19 Department of Consumer Credit.

20 3. Beginning November 1, 2024, the annual assessment fee shall
21 not be:

22 a. less than One Thousand Dollars (\$1,000.00),
23
24

- 1 b. more than Forty Thousand Dollars (\$40,000.00) for the
2 portion of the assessment calculated according to
3 subparagraph a of paragraph 2 of this subsection, nor
4 c. more than Seventeen Thousand Five Hundred Dollars
5 (\$17,500.00) for the portion of the assessment
6 calculated according to subparagraph b of paragraph 2
7 of this subsection.

8 4. Beginning November 1, 2025, the annual assessment fee shall
9 not be:

- 10 a. less than One Thousand Dollars (\$1,000.00),
11 b. more than Forty Thousand Dollars (\$40,000.00) for the
12 portion of the assessment calculated according to
13 subparagraph a of paragraph 2 of this subsection, nor
14 c. more than Twenty-seven Thousand Five Hundred Dollars
15 (\$27,500.00) for the portion of the assessment
16 calculated according to subparagraph b of paragraph 2
17 of this subsection.

18 5. Beginning November 1, 2026, the annual assessment fee shall
19 not be:

- 20 a. less than One Thousand Dollars (\$1,000.00),
21 b. more than Forty Thousand Dollars (\$40,000.00) for the
22 portion of the assessment calculated according to
23 subparagraph a of paragraph 2 of this subsection, nor
24

1 c. more than Thirty-five Thousand Dollars (\$35,000.00)

2 for the portion of the assessment calculated according
3 to subparagraph b of paragraph 2 of this subsection.

4 6. Beginning November 1, 2027, the annual assessment fee shall
5 not be:

6 a. less than One Thousand Dollars (\$1,000.00),

7 b. more than Forty Thousand Dollars (\$40,000.00) for the
8 portion of the assessment calculated according to
9 subparagraph a of paragraph 2 of this subsection, nor

10 c. more than Forty Thousand Dollars (\$40,000.00) for the
11 portion of the assessment calculated according to
12 subparagraph b of paragraph 2 of this subsection.

13 7. A late renewal fee shall be as prescribed by rule of the
14 Commission on Consumer Credit.

15 8. Branch offices shall be registered with the Department and
16 shall be accompanied by an initial registration fee of One Hundred
17 Fifty Dollars (\$150.00).

18 9. A fee as prescribed by rule of the Commission on Consumer
19 Credit shall be charged for each license change, duplicate license
20 or returned check.

21 10. A fee as prescribed by rule of the Commission on Consumer
22 Credit shall be paid by applicants and licensees into the Oklahoma
23 Mortgage Broker and Mortgage Loan Originator Recovery Fund as
24

1 provided for in Section 2095.20 of this title for each initial
2 application and each renewal application.

3 11. Each additional trade name used by a licensee shall be
4 registered with the Department and shall be accompanied by an
5 initial registration fee of One Hundred Fifty Dollars (\$150.00).

6 12. The Administrator of Consumer Credit may reinstate a
7 license within thirty-one (31) days of the expiration of the license
8 if the licensee pays the assessment fees and a reinstatement fee of
9 Five Hundred Dollars (\$500.00). A ~~licensee~~ license shall not be
10 reinstated when the renewal application, fees, or any required
11 information is received on or after February 1 of the following year
12 that the renewal application was due.

13 13. The Administrator may reduce annual assessment fees on a
14 pro rata basis for a specific renewal period by reducing the factor
15 applied to the dollar volume of loans originated and serviced. The
16 Administrator shall notify licensees of an annual assessment fee
17 reduction prior to November 1 of the specific license renewal
18 period. An annual assessment fee does not include an initial
19 license fee for purposes of this subsection.

20 ~~H. M.~~ 1. An applicant for an initial mortgage loan originator
21 license shall pay a fee of Four Hundred Fifty Dollars (\$450.00).

22 2. An applicant renewing a mortgage loan originator license
23 shall pay a fee of Two Hundred Fifty Dollars (\$250.00).
24

1 3. A late renewal fee shall be as prescribed by rule of the
2 Commission on Consumer Credit.

3 4. A fee as prescribed by rule of the Commission shall be paid
4 by applicants and licensees into the Oklahoma Mortgage Broker and
5 Mortgage Loan Originator Recovery Fund, as provided in Section
6 2095.20 of this title, for each initial application and each renewal
7 application.

8 SECTION 2. This act shall become effective November 1, 2026.

9
10 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
11 OVERSIGHT, dated 04/14/2026 - DO PASS.

12
13
14
15
16
17
18
19
20
21
22
23
24